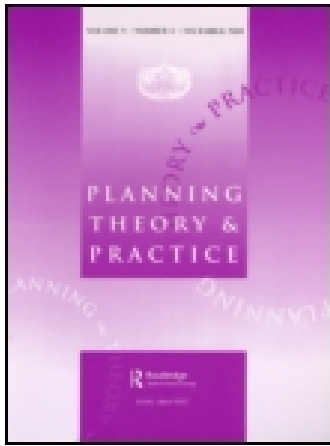


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Multi-Level (Territorial) Governance: Three Criticisms¹

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ABSTRACT *Multi-level territorial governance has entered European planning discourse, but is the term “territorial” actually redundant? After all, multi-level governance is already thought to refer to the interaction between nested territorial administrations. So could multi-level governance be criticised for giving more attention to the roles and positions of lower-levels in a multi-level polity rather than invoking a comprehensive concept of governance implicating non-governmental actors in policy making? And does the multi-level governance literature ignore the underlying metageography? Whether territories are accordingly fixed jurisdictions or malleable social constructs has implications for planning and beyond.*

Keywords: Multi-level governance; territory; territorialism

Multi-level and geographically flexible territorial governance should be able to manage different functional territories and ensure the balanced and coordinated contribution of the local, regional, national, and European actors—such as authorities or governments—in compliance with the principle of subsidiary through systematic integration of territorial aspects. (Territorial State and Perspectives, 2011, p. 85)

... even though many implementation networks are situated at the regional or local level, their boundaries often do not converge with administrative delineations. In addition, they are often of a more ephemeral nature ... In that sense, functional need and not regional empowerment or federalism is the key concept. (Conzelmann, 2008, p. 26)

“Multi-level and geographically flexible territorial governance” in the first quotation above can either mean that territorial governance is multi-level and flexible, or that there are two forms of territorial governance, one multi-level and one territorially flexible. The reach of the “authorities or governments” referred to is not flexible, so “geographically flexible territorial governance” must necessarily be a separate form. Indeed, according to the second quotation, relevant arrangements cut across administrative delineations. Nonetheless, multi-level governance is often interpreted in the first sense as the sharing of responsibilities in a multi-level polity. The Committee of the Regions (2009) thus talks about it in the sense of “coordinated action by the European Union, the member states and local and regional authorities, based on partnership and aimed at drawing up and implementing EU policies.” Defending the rights of local and regional authorities is its calling, so there is nothing wrong with this. The question is whether an exclusive focus on vertical

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intergovernmental relations justifies talking about multi-level governance. Commonly, governance is seen as broader than what government institutions do. It “refers to theories and issues of social coordination and the nature of all patterns of rule” and also to practices and dilemmas that place “less emphasis than did their predecessors on hierarchy and the state” (Bevir, 2011, p. 1). Already in the mid 1990s, Rhodes (1996, p. 660) drew attention to self-organising, inter-organisational networks. He described the characteristics of this, what he already described as governance, as interdependence between organisations, continuing interactions between network members, game-like interactions rooted in trust and regulated by rules of the game negotiated and agreed by network participants, a significant degree of autonomy from the state.

Multi-level governance as a concept emerged during a veritable “governance turn” in EU studies in the 1980s. This represented a shift away from attempting to explain integration in terms of the respective roles of member states and the EU to a concern for explaining how the system actually works (Jordan, 2001; Kohler-Koch & Rittberger, 2006). Researchers found that practice did not fit the mould of the formal relations between levels that integration theories focused on, a finding replicated in research on European spatial planning. (For an overview, see Dühr *et al.*, 2010, pp. 101–113). One line of researchers examined EU regional policy after its reform in the late 1980s and it was within this context that the concept of multi-level governance became popular and, as indicated, it penetrated the discourse also on European spatial planning as multi-level territorial governance.

The paper identifies three problems with this. The least serious one is that the specification “territorial” is redundant. Multi-level governance as such is already inexorably territorial. The second problem is the ambiguity in multi-level governance. As indicated, commonly the focus is on relations between governments at various levels. Governments are in the business of governing and so one may ask why the talk is about multi-level governance. The third, least appreciated but arguably most fundamental problem concerns the underlying conceptions of space or territory. The paper identifies this problem, drawing on literature not generally referred to in this context. The focus will be on the “metageography” underlying multi-level governance described as “territorialism”. Territorialism sees the world as a collection of fixed territories. It leads into what Agnew (1994) has once described as the “territorial trap”: a projection of the world in which power is imagined to be “pooled up” in equivalent territorial units. There is an alternative view of territory, not as something fixed, but as a malleable social construct, with implications for planning and beyond.

These problems will be discussed in the ascending order of gravity outlined above. After talking about the derivative multi-level territorial governance in the first section, the second section discusses multi-level governance highlighting the ambiguity referred to. Section three problematises the conceptions of space or territory underlying. The conclusion summarises the argument and points at new planning challenges emerging.

Planners Invoking Multi-Level Territorial Governance

In the mid 2000s European spatial planners began to invoke the concept of multi-level territorial governance. By that time, the term “territory”, as in “territorial cohesion”, had entered their discourse (Faludi, 2006). The Dutch and the Luxembourg Presidency of the EU renewed the 1990s practice of informal ministerial meetings, starting with one at Rotterdam of ministers said to be responsible for territorial cohesion rather than, as the label had been previously, spatial planning. The assumption was that the “Treaty establishing a Constitution

for Europe” defining territorial cohesion as an objective and as a shared competence would come into operation on 1 November 2006. (As far as territorial cohesion is concerned, its functional equivalent, the Treaty of Lisbon, came into operation on 1 December 2009.) Whilst the Constitution hung in the balance, the ministers and their advisers continued in their quest to come to terms with this concept, producing the “Territorial Agenda of the European Union” (Territorial Agenda, 2007; Faludi, 2009). One year later came the “First Action Programme”. This made the first mention in an official document of strengthening multi-level territorial governance in the EU as “a fundamental tool for a balanced spatial development of the European Union” (First Action Programme, 2007, p. 2) and this became one of the “Lines of Action” to which ministers committed themselves.

Multi-level territorial governance has been invoked on other occasions, for instance by CEMAT. In 2008, the Committee of Senior Officials of this “European Conference of Ministers responsible for Spatial/Regional Planning” of the Council of Europe—the acronym CEMAT being based on its French designation—proposed “a common policy under which all spatial planning, development and management instruments would incorporate climate change into their ‘mitigation and adaptation’ dimension, and the appropriate processes of ‘multi-level’ territorial governance” (Council of Europe, 2008). The concept found its way also into the “Moscow Declaration” of CEMAT where it noted that, “in central and eastern Europe too, the decentralisation process, which started later, has progressed significantly, generating, as in western Europe, structures of multi-level territorial governance” (CEMAT, 2010, p. 3).

The European Commission’s Green Paper on Territorial Cohesion (Commission of the European Communities, 2008) eschewed any mention of multi-level governance, let alone multi-level territorial governance, but several reactions to the paper did so. For instance, the European Parliament (2009) held that “real partnerships between all the parties involved in regional and local development at EU, national, regional and local level, is a precondition for the process of designing territorial cohesion and calls on the Commission and the member states to make all efforts to develop such a multi-level territorial governance.”

The “Territorial Agenda of the European Union 2020” speaks of multi-level governance rather than multi-level territorial governance, but it is clear that the ministers interpreted multi-level governance in the same sense as CEMAT above. Thus, multi-level governance must “ensure balanced and coordinated contribution of local, regional, national and European actors ... This needs vertical and horizontal coordination between decision-making bodies at different levels and sector-related policies to secure consistency and synergy” (Territorial Agenda, 2011). This echoes the “Territorial State and Perspectives” being the expert document on which the ministers based themselves, quoted at the beginning of this paper and which invokes multi-level territorial governance in so many words.

The word “territorial” adds nothing to the meaning of multi-level governance which, as commonly understood, is already “territorial”. Even case studies in fields that do not seem to be about territorial issues show territory as being implicated. Piattoni (2010, p. 255) finds that “policies that best lend themselves to being governed by MLG are those with an arguable link to territory.” That multi-level governance is territorial may be taken as read.

Multi-Level Governance

This section highlights the second problem identified above; the ambiguity between multi-level governance as merely signalling the recognition of polities (in particular that of the EU) being multi-level on the one hand, and the shift from governing to governance on

the other. Inter-organisational networks exist between government institutions. Their work thus takes on features of governance, with administrations lobbying, much like functional and civil society organisations (Piattoni, 2010, p. 243). However, governance refers not only to these networks, but to “all forms of collective action focused on the public realm ... from those orchestrated by formal government agencies, to lobby groups, self-regulating groups and social campaigns and movements” (Healey, 2006, p. 302) Where multi-level governance is invoked mainly to underscore the position of some level of administration—where the focus is mainly on vertical relations within a multi-level polity—the qualification as governance is questionable.

There are two parts to this section. The first discusses multi-level governance in its original meaning when the emphasis was on the fact that the EU represented a multi-level polity. The second discusses type I and type II multi-level governance as identified by Hooghe and Marks. Like the classic concept, type I puts more emphasis on multi-level polities. Type II is about forms of governance that are not necessarily multi-level. Piattoni’ (2010, p. 257) attempts to marry the two, but in the end comes down on the side of favouring territorial jurisdictions where responsibility rests “for tying the many policy knots into coherent wholes.”

A Multi-Level Polity

Initially, whether arrangements in the EU are “intergovernmental”, meaning that member states merely delegate some limited powers to Brussels, or “supranational” so that the EU is more like a (quasi-)federation, has been the object of debate in relevant textbooks. Examples are Rosemond (2000), Nugent (2006) and from the perspective of European spatial planning, Dühr *et al.* (2010). The “governance turn” already referred to, shifted the emphasis away from what the EU is to how the EU works. An example is given by Hix and Hoyland (2011) who, rather than with grand theories of integration, deal with the application of political theory to the European political system. The EU polity is treated, not as something in need of explanation or justification, but as a given.

So during the governance turn, policy-making became the focus of attention. This related “either to the debate about ‘regionalization’ of Europe and the new role of regions in EU governance, or to the investigation of new modes of governance, such as the implementation of the ‘partnership principle’ and the ensuing effects” (Kohler-Koch & Rittberger, 2009, p. 32). Researchers focusing on the Structural Funds in particular soon found that “variable combinations of governments on multiple layers of authority—European, national, and subnational—form policy networks for collaboration. The relations are characterized by mutual interdependence” (Hooghe, 1996, p. 18).

The reason for this new mode of operation, as regards the Structural Funds, was the paradigmatic shift in regional policy from finance for regional investments, including infrastructure, to regions themselves identifying clusters of industries, implementing strategies of flexible specialisation and fostering endogenous potentials of locations, including cultural and environmental assets (Benz, 2000). Of course, there is a world of thought about economic development as such, although this is not the topic for discussion here. The EU absorbing this new paradigm involved regional and local, public and private actors under what was called the partnership principle, a more general feature of the “new modes of governance” (Conzelmann, 2008) and a keystone of the European model of society under Commission President, Jacques Delors (Faludi, 2007).

So the concept of multi-level governance arose in connection with efforts to understand the operations of the Structural Funds. Conzelmann (2008) credits Marks (1992) with

having invoked it for the first time. Gary Marks is but one of many distinguished "Euro-watchers" from across the Atlantic who contribute to thinking about European integration. Although originally from Belgium, his co-author on many occasions, Lisbeth Hooghe, like him, hails from the University of North Carolina, USA.

According to Marks's first seminal contribution, the reform of the Structural Funds raised questions about decision-making across the Community, member states and regional governments. He started with asking whether the EU was to be understood as a club of member states (the intergovernmental, or state-centred perspective), or whether it was something above the member states (the supranational perspective). However, a closer look at regional policy pointed in the altogether different direction of some form of "network governance" (see also Kohler-Koch & Rittberger, 2006, p. 34). Note, though, that Marks's concern was not the position of non-state actors. The "network governance" to which he referred pointed to networks between governmental bodies at various levels interacting. Also, the growth of funding as such for what is now better known as cohesion policy could be explained from a state-centred perspective which seemingly supports an intergovernmental view of integration. Marks (1992, p. 192) concluded that neither this nor the supranational view were adequate; one needed instead to "adopt a more open-textured, multilevel perspective." Indeed, paying particular attention to the roles of sub-national levels, multi-level governance as a concept transcended the distinction between the two views, a point discussed critically by Jordan (2001).

The procedural reforms in EU regional policy pioneered as they had been during the previous Integrated Mediterranean Programmes, required direct dialogue between the European Commission and those in the field. This strengthened the Commission and depoliticised a key and growing policy area. Indeed, regional policy, "by creating direct links between the Funds and regional political institutions, challenges centralized decision making within member states" (Marks, 1992, p. 212).

Marks noted that structural policy was in flux due to a new understanding of the Commission's role, mobilising, as it did, subnational governments, with national governments responding by attempting to control the newly formed relations. As a consequence of these cross-currents, instead of a consistent pattern of policy-making, "one finds extremely wide and persistent variation. In short, the European Community seems to be part of a new political (dis)order that is multilayered, constitutionally open-ended, and programmatically diverse" (Marks, 1992, p. 221). Marks's final comment related to the notion of the state, the Weberian concept (rooted in the control of legitimate means of coercion within territory under its control) and which reveals "less and less about the realities of political power and decision making in Western Europe" (Marks, 1992, p. 223).

Thus, Marks's concern was not what has frequently become the focus since: the position of the regions and local authorities. Rather, the concern was to understand the nature of a new phenomenon in terms of what Marks more often called a "multi-level polity" than "multi-level governance". Indeed, Jordan (2001, p. 201) asked pointedly whether Marks's multi-level governance was not really multi-level government since he "focused exclusively on subnational authorities rather than other subnational actors."

The term multi-level governance has stuck even so, spawning a wealth of literature which Kohler-Koch and Rittberger (2006), Gualini (2006) and recently also Piattoni (2010) review. A first edited volume under the heading of multi-level governance (Hooghe, 1996) came out very quickly. In the same year a review essay was published (Marks *et al.*, 1996) in the *Journal of Common Market Studies*, reminding the modern reader of the original shorthand for European integration as the creation of a "Common Market" in its title. The review essay made it abundantly clear that understanding the political architecture of

Europe rather than the articulation of the position of regions, was what multi-level governance was about. Far from denying that states were important, arguably even “the *most* important pieces in the European puzzle” (Marks *et al.*, 1996, p. 346), the essay asserted that member states did not monopolise European-level policy-making. Firstly, decision-making competencies were shared by actors at different levels; secondly, their involvement in collective decision-making implied loss of control for individual state executives; thirdly, political arenas were interconnected rather than nested: “While national arenas remain important ... the multi-level model rejects the view that subnational actors are nested exclusively within them. Instead, subnational actors operate in both national and supranational arenas, creating transnational associations in the process” leading to network governance.

Like Marks’s sole-authored work, the three authors gave a detailed analysis of EU decision making. As again in the earlier paper by Marks, the talk was more in terms of the EU as a multi-level polity than of multi-level governance. The conclusions were thus that “states in the European Union are being melded gently into a multi-level polity by their leaders and the actions of numerous subnational and supranational actors” (p. 371). Governance as a concept was more implied than discussed.

The paper made the point also that one “does not have to argue that states are on the verge of political extinction to believe that their control of those living in their territories has significantly weakened” (Marks *et al.*, 1996, p. 372) Furthermore, privileging those interests with technical expertise matching the style of EU policy-making, multi-level governance opens up multiple points of access for various interests. “In this turbulent process ... it is patently clear that states no longer serve as the exclusive nexus between domestic politics and international relations. Direct connections are forged among political actors in diverse political arenas” (p. 372).

This goes beyond the understanding of multi-level governance by the Committee of the Regions. There the emphasis is on the positions of regional and local levels of government. In this sense it was correct for Marks *et al.* (1996, p. 372) to speak about multi-level governance, but their main concern remained a better understanding of the governing of the EU as a multi-level polity. In their further work, Hooghe and Marks do not always distinguish between governing and governance. Rather, their publications on the two types of multi-level governance (Hooghe & Marks, 2001, 2003, 2010; Marks & Hooghe, 2004) point out the emergence worldwide of new, decentralised ways of governing, the topic also of yet another publication of theirs focusing on the rise of regional authorities (Hooghe *et al.*, 2010).

Multi-Level Governance Type I and Type II

The ambiguity between multi-level governance as signalling the existence of multi-level polities on the one hand and the shift from governing to governance on the other will become more evident when discussing the distinction between type I and type II multi-level governance.

Focusing first of all on decentralised ways of governing, Hooghe and Marks (2010, p. 17) point out that formal authority “has been dispersed from central states both up to supranational institutions and down to regional and local governments.” They talk in so many words about “ways of governing”, and indeed the paper does not make great play of the involvement of non-governmental actors. The authors point out also that the membership boundaries of the general-purpose jurisdictions do not intersect. The consequence is that “every citizen is located in a Russian doll set of nested jurisdictions, where there is one and only one relevant jurisdiction at any particular territorial scale”

(Hooghe & Marks, 2010, pp. 17–18). The “Russian doll” figure of speech is often used, mostly to criticise the simplifications which it implies. Mahon and Keil (2009, p. 14) thus invoke it for situations “where each doll/scale is understood as largely capable of being considered on its own, even while located in its (fixed) position within a preordained hierarchy.” Amin (2004) and Hajer (2009) do likewise and with equally critical intent.

Type II multi-level governance refers to specialised jurisdictions. Their number is potentially huge and the scales vary. The jurisdictions tend to be lean and flexible and task-specific, and their intersecting memberships criss-cross judicial boundaries. In terms frequently invoked by planners, type II multi-level governance refers to sectors such as transport, education or healthcare, and the relevant arrangements are, for example, a highway authority, a school authority or a hospital administration. As indicated, there is more emphasis on the relevant agencies than on the involvement of civic society, but it is clear that, since relations between functional agencies are less well-defined than the relations within the Russian doll, this form leans towards the diffusion of decision-making, which is characteristic of governance.

There is a territorial dimension to these arrangements. Those responsible have jurisdiction (albeit partial) over a certain area: a river basin, a school or hospital district, the area of responsibility of a metropolitan transport authority, and so forth. Naturally, what these agencies do when and where impacts on the areas of responsibility of general-purpose administrations. Conzelmann has signalled in the quotation at the beginning of this paper that functional arrangements criss-cross jurisdictions. Water catchment areas referred to by Hooghe and Marks (2010, p. 18) are good examples, and so are commuter areas and nature areas. Not all such functional areas are covered by adequate arrangements. In any case, territorial authorities will always want to get a handle on whatever arrangements exist. Whether they are successful or not is an altogether different matter, but the picture is certainly complex.

Hooghe and Marks (2010) are aware of the complexity of type I and II existing cheek by jowl. They invoke Rosenau (1999, p. 292) talking about fragmentation: public and private actors collaborating and competing in shifting coalitions. Echoing Anderson (1996) on “New Medievalism,” Hooghe and Marks (2010) point out that, in its totality, type II multi-level governance indeed resembles pre-modern government. Zielonka (2006, p. 190) even sees the EU as such as a neo-medieval empire with fuzzy boundaries characteristic of such configurations, and recently, new medievalism has been invoked by Khanna (2011) in interpreting global governance. All this stands for overlapping authority structures, a far cry from the “Russian doll.”

Like the Committee of the Region’s 2009 White Paper quoted in the introduction, European multi-level governance is often conceived in terms of type I. Planners tend to see it this way. Generally speaking, they are responsible for bounded jurisdictions. However, there are also variable territorial arrangements and distinct governance systems. Cross-border and transnational co-operation gives von Wedel (2010) cause to talk about a “re-medievalisation” of Europe. Next to these forms common in Europe, he also invokes the new macro-regional strategies as further evidence of this. (On the macro-regional strategies, see also Metzger & Schmitt, 2012; Stead, 2011.) The “Baltic Sea Area,” the “Danube Space,” perhaps in due course also the “Alpine Space” and the “Adriatic Space” (INTERACT, 2012) are all type-II examples with only a vague relation to geographic entities and with no territorial jurisdictions exercising overall authority over them.

Type I multi-level governance is orientated to intrinsic communities where type II is ubiquitous in organising spill-overs in the absence of authoritative coordination. Hooghe and Marks (2010, p. 29) emphasise, and Piattoni (2010, p. 247) agrees, that “both must be

maintained for the sake of the unique interests and values that they represent.” Piattoni affirms and expands on this saying that “territories retain their relevance as policy decisions tend to have a localized impact and numerous ‘factors’ cannot be easily relocated (infrastructure, environment, knowledge, people).” (Piattoni, 2010, p. 250).

The argument here has been about the very concept of multi-level governance oscillating between a focus on multi-level polities—which is what type I does—and drawing attention to the multifarious relations cross-cutting hierarchical arrangements—which is what type II does so well. At first sight, our every-day conceptions of space and in particular of territory seem to fit in neatly with type I, based on jurisdictions with fixed boundaries, but a closer look at the literature shows things to be more complex.

Conceptions of Space and Territory

Murphy (2008, p. 8) contends that the “institutional-cum-political-economic emphasis” in the multi-level governance literature needs to be supplemented “with a concern for the ways in which territorial understanding and arrangements are shaping how things are organized on the ground and how people conceptualize Europe as a geographical construct.” He invokes the term “metageography” and points out also that there is a growing body of opinion holding that the EU “challenges the territorial logic of the modern state system.” More specifically, it “can no longer be understood in terms of the sovereignty norms of the modern state system because governmental competencies are no longer concentrated in discrete political spaces organized at a single scale or level.” (Murphy, 2008, p. 7) Surely, this means that the “intrinsic communities” which Hooghe and Marks refer to, as well as the “subnational territorial communities” invoked by Piattoni, are problematic categories. One must contemplate another metageography that avoids falling into what Agnew (1994) identifies as the “territorial trap.” Conventional thinking in international relations theory—being the object of Agnew’s concern—assumes that states are fixed units of sovereign space; that there is a clear dividing line between domestic and foreign policy; and that states are “containers” of societies. Agnew shows that these conventional thoughts are no longer helpful. This is also true for the issues discussed in this paper.

This section draws on literature criticising the assumption of territory as a fixed container. The purpose is not to review all of its branches, where notions of scale and place and space and territory are being discussed from different angles (Jessop *et al.*, 2008; Keil & Mahon, eds. 2009). The sole purpose here is to cast light on multi-level governance by offering a critique of the underlying metageography.

Metageography

Without invoking the actual term “metageography”, Scholte in his work on globalisation challenges the dominant metageography of the EU. He characterises it as “territorialism.” Under territorialism “macro social space is wholly organized in terms of units such as districts, towns, provinces, countries and regions. In times of statist territorialism more in particular, countries have held pride of place above the other kinds of territorial realms” (Scholte, 2000, p. 47). Some connections are partly detached from this territorial logic. In global transactions, “place” is not territorially fixed, territorial distance is covered in effectively no time, and territorial boundaries present no particular impediment. In terms of Castells (1996), to whom Scholte refers, the “space of flows” overgrows the “space of places”. Social space cannot, therefore, be understood in terms of territorial geography alone—not in terms of districts, towns, provinces and so forth, with borders marking the limits of the jurisdiction of the authorities responsible for them.

In Scholte's work one can discern echoes of Hooghe and Marks's type I and type II multi-level governance. What is missing in the literature on this topic is any awareness of different notions of underlying territory. Metageography refers to spatial structures of thought underlying perceptions of the world—giving another dimension to a simple map of sovereign states. Murphy (2008) gives examples of the effect of invoking implicit metageography; continents being thought of as collections of states, and religious realms mapped by assigning states to one or the other of them. Such conceptions are important, Murphy says, because they shape our understanding and our actions. Particularly as regards the EU, "a metageography clearly persists that casts states as the region's most important internal spaces and that treats political-territorial developments at other levels largely in terms of the ideological norms that underpin the modern state system." (Murphy, 2008, p. 9) This can lead into Agnew's "territorial trap". It is tempting to discuss EU policy stalemates in terms of the territorial trap, but this is not the topic of this paper.

Territoriality

The other concept Murphy refers to is territoriality. According to the definition which he quotes by Sack (1986, p. 1) this is "a spatial strategy to affect, influence, or control resources and people, by controlling area." Territoriality is changing—particularly the territoriality of the state. The reason is that controls are being dispersed over a field featuring competing but interlocking institutions. This leads one to appreciate the European map "not as a set of spaces to be discussed and analysed, but as the outcome of efforts to achieve particular ends with concrete implications for how things are organized and how people think about the world around them" (Murphy, 2008, p. 91). Murphy continues by saying that the "territoriality of the European state system helped to produce a geographical imagination that privileges the 'nation-states' over river basins, vegetation zones, population concentrations, or other possible regionalizations." The latter are of course examples of functional territories relevant in multi-level governance type II.

The existence of "Westphalian blinders" (Mahon & Keil, 2009, p. 10) has been castigated by others, for instance by Marks in his first paper on multi-level governance. Piattoni (2010, p. 247) likewise rejects the European obsession—her words—with the traditional concept of the state, and wants the federal idea, which she seeks to resuscitate, to be emancipated from categories of sovereignty and constitutional supremacy. Neither Marks nor Piattoni couch their arguments in terms of either metageography or territorialism, but these concepts are clearly relevant. Thus, in particular under type I multi-level governance, territory is the area over which government formations exercise jurisdiction, and space overall is filled to the brim with such units. It is their responsibility for such circumscribed jurisdictions where political and bureaucratic elites rest their case for exercising power. Space overall is thus neatly divided, allocated, investigated and taxed. Land-use planning, of course, relates to this administered space, with every location having rights and obligations attached to it that can be read off an official map and attendant regulations. Alongside others, therefore, planners—in particular those in land-use control—tend to work with a territorialist metageography.

Whether as individuals or as corporate bodies, actors are thus seen as embedded in Hooghe and Marks's "Russian doll" with addresses that not only locate them in space, but also in relation to various levels of government and administration. Actors also forge networks cross-cutting administrative boundaries and these cannot be contained, which can be problematic. One very large "box"—a situation veering towards the nightmare of a European superstate which opponents of integration paint on the wall—is no answer. There are always external links. In a series of publications, Allmendinger and Haughton

have identified and investigated the “soft” spaces created in this way (Allmendinger & Haughton, 2009, 2010; Haughton *et al.*, 2010). Faludi (2010) sees “soft planning for soft spaces” as the future for European planning.

Relational Space

In this context it is relevant to look at literature that addresses planning transcending jurisdictional boundaries. Couching their analysis in terms of “scale” rather than space or territory, Janssen-Jansen and Hutton (2011, p. 307) in a special issue on metropolitan planning around Milan, Stuttgart, Portland, Vancouver and Amsterdam claim that it is hard to find the right scale for strategic planning. Like others do with territory, they claim that scale is a dynamic concept, varying by theme and time. The urban region does not, therefore, exist. Rather, regions are always in the making, “defined on the basis of a particular theme or subject around which the actors have formed a coalition.”

Dangschat (2006) argues similarly that our understanding of space—in Murphy’s terms “our metageography”—needs to move from viewing it as contiguous jurisdictions to conceiving of it as overlapping networks. The former view assumes that responsibility ends at the border. Dangschat replaces this “container view” of space with one which takes how people organise themselves in space as its point of departure. This leads him to identify a discrepancy between the space of planners and administrators, and the everyday spatial practices of citizens.

Davoudi and Strange (2009) see places as economically, socially and culturally produced. Davoudi (2011) relates this to the emergence of an interpretative, as against a positivist, tradition in spatial planning. The relational concept views space as being dependent on the processes and substances that make it up. The introduction to their edited volume starts with quoting Thrift (2003, p. 95) where he says “space . . . is the outcome of a series of . . . settlements that divide and connect things up into different kinds of collectives.” In the relational view, “the process of place formation becomes a process of carving out “permanences” from the flow of processes creating spaces.” In a passage reminiscent of Hooghe and Marks, Davoudi and Strange (2009, p. 38) say that space “can be seen as both a nested hierarchy with fixed boundaries determined by movements, networks, nodes and hierarchies as well as an interconnected web with contingent boundaries, constantly territorialized, and a site of political contestation” (Davoudi & Strange, 2009, p. 39). In terms of type I and type II multi-level governance one might say that both exist, and will continue to exist alongside each other, a conclusion which Hooghe and Marks share.

Davoudi and Strange thus conceptualise space as depending on the processes and substances making it up. In this “relational” view, “place formation” becomes a process of carving out “permanences” from the flow of processes creating spaces. Invoking a “relational” view, they build on the radical geographer Harvey. Harvey made his distinction between absolute and relative space more than 40 years ago when he criticised the absolute view of space as a neutral container, a filing system or abstract frame of reference—a view which advances in physics and in geometry had long discredited. Harvey contrasted this with a view of space as a positional, relational quality of the world of material objects. His example was location theory, conceptualising cities as influencing the properties of the spaces around them. He concluded that “it is no longer feasible to take a container view of space. Activities and objects themselves define the spatial fields of influence The notion of an absolute space . . . no longer holds” (Harvey, 1969, p. 209).

Another author absorbing the relational view is Healey. With Graham she criticises what they call the bedrock-concept of the object-centred Euclidean conception of space

(Graham & Healey, 1999). In a well-received book, *Splintering Urbanism*, the title of which encapsulates its message, Graham and Marvin (2001, p. 33) take this further, showing that “infrastructure networks are being ‘unbundled’ in ways that help sustain the fragmentation of the social and material fabric of cities.” This drives the authors to ask “what becomes of cities as a *whole* ... ?” (Graham & Marvin, 2001, p. 382; emphasis in the original). They see a danger of the collapse of the “integrated ideal”, but remark on countervailing powers: social movements, but also “local and national state and governance regimes” (p. 397). They cannot entirely avoid putting their trust ultimately in such regimes, but such regimes are inexorably linked to the single representation of space which they critique.

A planning author who has ensured that frontline social-science thinking penetrates planning discourse (including thinking on space) is Healey, who co-authored the paper with Graham and who has recently reaffirmed her concern with place governance “with a planning orientation.” She explores what “place” this might mean. Without referring in so many words to any “territorial trap”, she points out that “those with a ‘stake’ in what happens in a place are not only local residents, or citizens, of a specific administrative-political jurisdiction. ‘Stakeholders’ may come from other places” (Healey, 2010, p. 32). It follows that jurisdictions “may not be coterminous with the key relations that need to be mobilised to address particular place-management and development problems and potentialities” (p. 69). In the concluding chapter, Healey (2010) reiterates this point saying that in improving the conditions of life for people in terms of their relations “it is important to move away from conceiving such relations as a kind of nested hierarchy of systems ... Instead, systems are better imagined as overlapping, loosely bounded and ‘loosely coupled’ sets of relations” (p. 226).

So here, too, the Russian doll view of space is being challenged. The conventional interpretation of multi-level governance assumes a metageography precisely in terms of a “kind of nested hierarchy of systems”, a Russian doll, rather than a loosely bound set of relations. Accordingly, rights to take decisions are “limited by some form of scope rules, including a legal system” (Zimmermann *et al.*, 2011, p. 27). The principle of subsidiarity applying in the EU context assumes such a Russian doll (Faludi, 2012). By way of contrast, where relations are loosely bound, as in governance networks, there “the members of the network take the decision, based on some sort of collective agreement” (Zimmermann *et al.*, 2011, pp. 27–28). In the terms of Murphy, the metageography is radically different.

Conclusions

The purpose of this paper has been to show that multi-level (territorial) governance as a concept is problematic. The critique has been threefold:

1. The minor criticism has been that, invoked by spatial planners, the adjective “territorial” as in multi-level territorial governance, is redundant.
2. Multi-level governance is ambiguous. It often refers to vertical relations between bodies of government within a multi-level polity and not to the more comprehensive process called governance.
3. Multi-level governance fails to problematise the territorialist underlying metageography.

The multi-level governance literature is neglecting an important aspect of its very object: the opportunity for appreciating “that the EU cannot be grasped solely in terms of the territorial vocabulary associated with the modern state system” (Murphy, 2008, p. 16). Invoking the concept of multi-level governance should thus lead to an appreciation of

"the types of territorial arrangements that are offering meaningful alternatives to the spatial imperatives of the state system" (Murphy, 2008, p. 16). With special reference to programmes such as INTERREG, Murphy surmises more in particular that "the EU offers the possibility of overcoming some of the territorial rigidities of the modern state system." He even invokes the prospect of "a new phase in the evolution of the European political-territorial order" (Murphy, 2008, p. 16). Being openly normative in her advocacy of a form of federalism, Piattoni (2010) seems to be thinking along similar lines. Considering such issues is a challenge, but if there is one thing the current crisis shows, then it is that arrangements in the EU no longer reflect the real interdependence in Europe.

Planners may want to focus on more practical concerns. The lesson for them is to break out of the "territorial trap" in which they find themselves and investigate and create new soft spaces. Their vanguard is already exploring alternative spatial or territorial arrangements, observing the organising principle which Davoudi and Strange (2009, p. 38) have outlined: multiple overlapping networks with continuous flows of people, resources and knowledge being "represented and visualised through the use of 'scenarios' and 'fuzzy maps' showing untidy and complicated flows."

Invoking such soft spatial categories in practice is no sinecure. Jurisdictions are entrenched. Harrison (2012) offers a case study of north-west England, where the regional strategy embraced a network approach but in the end was unable to circumvent the mosaic of jurisdictions. Metzger and Schmitt (2012, p. 275) have shown that even in the case of the Baltic Sea Region, a prime example of a soft space, there is a tendency for solidification "through the singularization of previously multiple concomitant articulations of the region, and a stabilization of institutionalized arrangements." The aim cannot be to simply replace existing institutions and practices but to achieve a synthesis between them and any new ones, always based on the awareness that, deeply entrenched though it might be, territorialism is not everything. Other metageographies need to be factored in. Imagining them is a new and challenging task in which planners might want to excel.

Note

1. A previous version was presented at a workshop convened by Marcin Dabrowski, John Bachtler and François Bafoil in cooperation with the Regional Studies Association at the Institute for European Integration Research, Austrian Academy for Sciences, in December 2011. The author wishes to thank Dominic Stead of Delft University of Technology, OTB Research Institute for the Built Environment and three anonymous reviewers for their helpful comments.

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